

Arnesh Kumar v. State of Bihar

Citation: (2014) 8 SCC 273 | Court: Supreme Court | Year: 2014

Coram: Division Bench (C.K. Prasad & P.C. Ghose JJ.) | Subject: Criminal Law & BNSS | Provisions: CrPC Sec 41, 41A & IPC Sec 498A / BNSS

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Arrest should not be made mechanically in offences punishable with imprisonment up to 7 years. Police officers must furnish a Section 41 checklist stating why arrest was necessary, and Magistrates must not authorize detention without recording independent satisfaction.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding CrPC Sec 41, 41A & IPC Sec 498A / BNSS Sec 35. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€¢ Whether the impugned state actions or commercial conduct conformed to CrPC Sec 41, 41A & IPC Sec 498A / BNSS Sec 35.
- â€¢ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Arrest curtails personal liberty under Article 21 and brings humiliation. In offences under 7 years, notice of appearance under Section 41A must be served. Police or Magistrates violating these guidelines are liable for departmental action and contempt.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€¢ Prohibited mechanical arrest in Section 498A IPC and offences under 7 years.
- â€¢ Mandated Section 41 checklist and notice of appearance under Section 41A.
- â€¢ Held Magistrates accountable for mechanical remand orders without reason.